RIGHT TO FREEDOM

1. Protection of Six Rights

Article 19 guarantees to all citizens the six rights. These are:

1. Right to freedom of speech and expression.
2. Right to assemble peaceably and without arms.
3. Right to form associations or unions or co-operative societies.[10a]
4. Right to move freely throughout the territory of India.
5. Right to reside and settle in any part of the territory of India.
6. Right to practice any profession or to carry on any occupation, trade or business.

Originally, Article 19 contained seven rights. But, the right to acquire, hold and dispose of property was deleted by the 44th Amendment Act of 1978.

These six rights are protected against only state action and not private individuals. Moreover, these rights are available only to the citizens and to shareholders of a company but not to foreigners or legal persons like companies or corporations, etc.

The State can impose 'reasonable' restrictions on the enjoyment of these six rights only on the grounds mentioned in the Article 19 itself and not on any other grounds.

The six rights contained in Article 19 and the grounds of imposing reasonable restrictions on them are mentioned in Table 8.5.

Freedom of Speech and Expression It implies that every citizen has the right to express his/her views, opinions, belief and convictions freely by word of mouth, writing, printing, picturing or in any other manner. The Supreme Court held that the freedom of speech and expression includes the following:

Table 8.5 Rights under Article 19 and the Grounds of Restrictions

Sl. No.	Rights	Grounds of Restrictions
1.	Right to freedom of speech and expression - Article 19(1)(a)	Under Article 19(2) 1. sovereignty and interegrity of India (added by the 16th Amendment Act, 1963) 2. security of the State 3. friendly relations with foreign states (added by the 1st Amendment Act, 1951)